

25STCV13252 25STCV13252

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-17

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Case Number: 25STCV13252 Hearing Date: July 17, 2026 Dept: 224

Nethercutt v. SFV Financial LLC

TENTATIVE RULING

Plaintiffs' motions to compel further responses, Court Reservation System Nos. ending in 0548, 3430, 3769, 4463, 5219, 7244, and 9222, are GRANTED. Defendants shall serve further substantive, Code-compliant, and verified responses within 30 days.

Sanctions are ordered against Defendants and Defendants' prior counsel of record, jointly and severally, in the amount of \$3,200, payable within 30 days.

ANALYSIS

Defendants served objection-only responses to the following discovery:

Plaintiffs' Form Interrogatories—Employment Law, Set One, to SFV Financial LLC (CRS No. 0548)

Requests for Production of Documents, Set One, to Michael Shaheen (CRS No. 3430)

Special Interrogatories, Set One, to Frank Mushmel (CRS No. 3769)

Special Interrogatories, Set One, to Michael Shaheen (CRS No. 4463)

Requests for Production of Documents, Set One, to Frank Mushmel (CRS No. 5219)

Special Interrogatories, Set Two, to SFV Financial LLC (CRS No. 7244)

Requests for Production of Documents, Set One, to SFV Financial LLC (CRS No. 9222)

Substantive responses to all of this discovery, are required by the Civil Discovery Act.

Sanctions

The discovery demands at issue have been pending without substantive responses since Fall 2025. The Court finds that Defendants' oppositions, offered no substantial justification for refusing to provide any substantive responses.

Plaintiffs seek sanctions based on counsel's hourly rate of \$400, which the Court finds reasonable. However, the Court finds the number of hours requested unreasonable. The Court awards one hour per motion ($7 \text{ hours} \times \$400 = \$2,800$) and one hour for appearance at the hearing on all motions (\$400), for a total of \$3,200.

Sanctions in the amount of \$3,200 are imposed against Defendants and Defendants' prior counsel of record, jointly and severally, payable within 30 days.

CONCLUSION

Plaintiffs' motions to compel further responses, Court Reservation System Nos. ending in 0548, 3430, 3769, 4463, 5219, 7244, and 9222, are GRANTED. Defendants shall serve further substantive, Code-compliant, and verified responses within 30 days.

Sanctions are ordered against Defendants and Defendants' prior counsel of record, jointly and severally, in the amount of \$3,200, payable within 30 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.